

Simancas with Castracani — Opera (Ferrara 1692)

Latin–English parallel text: De Catholicis Institutionibus tit. XLV n. 2 (printed 303) with Castracani’s note 19 (printed 314); tit. LVIII De Schismaticis entire with Castracani’s Annotationes (printed 395–398); Theorice et Praxis tit. V De Schismaticis entire (printed 461–462)

<i>Latin</i>	<i>English</i>
BLOCK A — De Cath. Inst. tit. XLV De Papa, n. 2 (printed 303)	BLOCK A — De Cath. Inst. tit. XLV De Papa, n. 2 (printed 303)
De Papa.	On the Pope.
2 Constanter igitur asserimus, & cum Catholica Ecclesia confitemur, omnes Pontifices Max. rectè, justèq; electos Christi Vicarios esse sub Cœlo, & legitimos Petri Apostolorum Principis successores, eosq; habere summam in Ecclesia Catholica potestatem, quibus obtemperare in his, quæ ad Fidem, & religionem pertinent, & in spiritualibus obedire tenemur; Si modo ab[1] ovile Christi pertinere voluerimus; quæ veritas literis Sacris, Conciliorum Canonibus, Patrum decretis, Sanctorum Doctorum sententiis, & unanimi Orthodoxorum Omnium, quotquot unquam fuerunt, consensu, & Ecclesiæ universalis traditionibus approbata, pervagata, tradita, & consecrata est. c. omnes 22. distin.	2 We therefore constantly assert, and confess together with the Catholic Church, that all Supreme Pontiffs rightly and justly elected are Vicars of Christ under heaven, and legitimate successors of Peter, Prince of the Apostles, and that they hold the supreme power in the Catholic Church; whom we are bound to comply with in those things which pertain to faith and religion, and to obey in spiritual matters, if only we shall have wished to belong to[1] the sheepfold of Christ. Which truth has been approved, spread abroad, handed down and consecrated by the Sacred Letters, by the Canons of the Councils, by the decrees of the Fathers, by the opinions of the holy Doctors, and by the unanimous consent of all the orthodox, as many as there ever were, and by the traditions of the universal Church. c. omnes 22. distin.
BLOCK B — Castracani, note 18 on tit. XLV (printed 314)	BLOCK B — Castracani, note 18 on tit. XLV (printed 314)
18 Cœterum quia &c.	18 Moreover, since, etc.
Successio Summorum Pontificum ab obitu D. Petri usque ad præsens tempus semper fuit una; sed succedendi modus varius, sicuti varii fuerunt ritus Summi Pontificis eligendi. Clemens Pontifex quidè designatus fuit à Petro, ut hìc refert Simanc; verùm ille, Pontificatu recusato, ad Petri Cathedrā, nisi post Lini, & Cleti mortem non ascendit; post Clementem penes Clerum Romanum fuit jus Romani Pontificis eligendi, cui non semel se interposuit Populus; Auctoritatem hanc postmodum sibi usurpavit Odoacer Arianus Rex Erulorum, & Theodoricus Gothus Italiæ Rex, quorum exempla secuti Orientales Imperatores, eandem sibi pariter usurparunt; sed justè Summis Pontificibus reluctantibus	The succession of the Supreme Pontiffs from the death of St. Peter down to the present time has always been one; but the manner of succeeding has varied, just as the rites of electing the Supreme Pontiff have been various. Pope Clement was indeed designated by Peter, as Simancas here relates; but he, having refused the Pontificate, did not ascend to the Chair of Peter until after the death of Linus and Cletus. After Clement, the right of electing the Roman Pontiff lay with the Roman Clergy, in which the People more than once interposed itself. This authority Odoacer, the Arian king of the Heruli, afterwards usurped to himself, and Theodoric the Goth, King of Italy; and following their example the Eastern Emperors likewise usurped the same to themselves; but, the Supreme Pontiffs justly resisting, they afterwards gave it

Latin

postea cesserunt; itàut in Concilio Romano Symmachus omnia, quoad Summi Pontificis electionem, in futurum more majorum servanda decreverit. Stephanus IV. in alio Concilio Romano statuit, ne ex alio ordine, nisi Diaconus, vel Presbyt. Cardinalis Pontifex creari posset, hocque, ut schismata, & scandala evitarentur. Gregorius X. in Conc. Lugdun. formam assignavit, circa ritus in Summi Pontificis electione servandos, nempe circa Cardinalium conclave &c. nàm circa tres eligendi formas, nempè Scrutinii, Compromissi, & Inspirationis, antea decretum in Generali Concilio ediderat Innocentius III. ut habetur in *c. Quia propter 42. extr. de Elect.* Hodiè ex constitutione Gregorii XV. electio Summi Pontificis fit tantùm per secretum scrutinium, concurrentibus duobus votorum tertiis Emin. Cardinalium existentium in Conclavi, & jam hoc electionis ritu sex Summi Pontifices electi fuerunt, Vrbanus nempè VIII. Innocentius X. Alexander VII. Clemens IX., & X., & Innocentius XI. Pontifex admirabilis pietatis, quem Deus in sui gloriam, & Sanctæ Ecclesiæ exaltationem diù servare dignetur. Vide *c. ubi periculum de elect. in 6. & Baron. ad annos 69. 483. 526. 499. & 769. ubi Spondan. nu. 16. 3. & 2. & nota, quòd licet D. Petrus designas-* [2] *se legatur in Pontificem Clementem, ut annuimus supra, attamē nullus Summus Pontifex de sui successoris electione decernere potest, nisi per modum exhortationis, & consilii, quemadmodum fecisse quòque creditur ipsemet Princeps Aposto-lorum. Extat de hoc relatio Concistorialis*[3], *de qua vide Victorellum in addit. ad Ciacconem in vita Pii IV.*

BLOCK C — De Cath. Inst. tit. LVIII De Schismaticis (printed 395–397)

De Schismaticis Titulus LVIII.

SUMMARIVM.

- 1 Schisma quid significet.
- 2 Schisma soror est hæresis.
- 3 Schisma quàm grave malum sit.
- 4 Schismaticorum tria sunt genera.

English

up, so that in the Roman Council Symmachus decreed that all things touching the election of the Supreme Pontiff were for the future to be observed after the manner of the elders. Stephen IV, in another Roman Council, established that no one could be created Pontiff out of any other order except a Deacon or a Cardinal Priest, and this in order that schisms and scandals might be avoided. Gregory X, in the Council of Lyons, assigned the form concerning the rites to be observed in the election of the Supreme Pontiff, namely concerning the conclave of the Cardinals, etc.; for concerning the three forms of electing, namely of Scrutiny, of Compromise and of Inspiration, Innocent III had earlier issued a decree in a General Council, as is had in *c. Quia propter 42. extr. de Elect.* Today, by the constitution of Gregory XV, the election of the Supreme Pontiff is made only by secret scrutiny, with two thirds of the votes of the Most Eminent Cardinals present in the Conclave concurring; and already six Supreme Pontiffs have been elected by this rite of election, namely Urban VIII, Innocent X, Alexander VII, Clement IX and X, and Innocent XI, a Pontiff of admirable piety, whom may God deign long to preserve unto His own glory and the exaltation of Holy Church. See *c. ubi periculum de elect. in 6. & Baron. ad annos 69. 483. 526. 499. & 769. ubi Spondan. nu. 16. 3. & 2.* And note that, although St. Peter is read to have designated[2] Clement as Pontiff, as we granted above, nevertheless no Supreme Pontiff can decree concerning the election of his successor, except by way of exhortation and counsel, in the very manner in which the Prince of the Apostles himself also is believed to have done. There exists a Consistorial[3] report of this, concerning which see *Victorellum in addit. ad Ciacconem in vita Pii IV.*

BLOCK C — De Cath. Inst. tit. LVIII De Schismaticis (printed 395–397)

On Schismatics. Title LVIII.

SUMMARY.

- 1 What schism signifies.
- 2 Schism is the sister of heresy.
- 3 How grave an evil schism is.
- 4 There are three kinds of schismatics.

<i>Latin</i>	<i>English</i>
5 Schismaticorum secundum genus.	5 The second kind of schismatics.
6 Schismatici secundi generis parum ab hæreticis distant.	6 Schismatics of the second kind differ little from heretics.
7 Schismatici eisdem ferè pœnis coercentur, quibus hæretici.	7 Schismatics are restrained by almost the same penalties as heretics.
8 Schismaticorum communicationem fugere debent Catholici.	8 Catholics ought to flee communication with schismatics.
9 Schismaticorum tertium genus.	9 The third kind of schismatics.
10 Theodosii, & Valentiniani lex de Schismaticis, & hæreticis à communione Catholicorum expellendis.	10 The law of Theodosius and Valentinian concerning schismatics and heretics to be expelled from the communion of Catholics.
11 Christus multis in locis nobis præcipit, ut unum simus.	11 Christ in many places commands us to be one.
12 Hæretici recentes non unum sunt, sed variis sectis, & opinionibus se addicunt.	12 The recent heretics are not one, but give themselves over to various sects and opinions.
13 Hæreticorum dissidia, & variæ opiniones inter se.	13 The disagreements of the heretics, and their various opinions among themselves.
14 Hæreticos quàm æquum sit punire.	14 How just it is to punish heretics.
De Schismaticis.	On Schismatics.
1 Schisma Græcum nomen est, latinè scissuram sonat; verū apud Christianos infame nomē est, significans illicitam discessionem ab Ecclesiæ unitate. Undè Schismatici dicuntur, qui ab obedientia Pontificis Maximi se ipsos iniquè separant, & ab Ecclesiæ Catholicæ unitate discedunt. c. Schisma 24. qu. 1. Alex. Ales. 2. p. q. 182. Tho. 2. 2. quæst. 39. Joan. Torquem. lib. 4. de Eccl. part. 1. cap. 1.	1 SCHISM is a Greek name; in Latin it sounds “a rending”; but among Christians it is an infamous name, signifying an unlawful departure from the unity of the Church. Whence those are called schismatics who wickedly separate themselves from the obedience of the Supreme Pontiff, and depart from the unity of the Catholic Church. c. Schisma 24. qu. 1. Alex. Ales. 2. p. q. 182. Tho. 2. 2. quæst. 39. Joan. Torquem. lib. 4. de Eccl. part. 1. cap. 1.
2 Est autem Schisma soror hæresis, nō qualiscunq; sed utrinque conjuncta. Hæ sanè sunt sorores illæ peccatricis Hierusalem, quarum Propheta Ezechiel meminit, quemadmodum Origenes elegantè explicat, inter alia dicens: <i>Ubi schismata, ibi hæreses, ibi dissensiones; aut enim incommunitatum non venit schisma, aut absq; pejore se comite diu non subsistit.</i> Et Beatus Hieronymus in Epistolam Pauli ad Titum, inter hæresim, & schisma hoc interesse arbitratur, quòd hæresis perversum dogma habeat; schisma verò post Episcopalem discessionem ab Ecclesia pariter separat. Quod quidem in principio aliqua ex parte intelligi potest diversum; ceterum nullum schisma non sibi aliquam hæresim confingit, ut	2 Now schism is the sister of heresy, and that not of any sort whatever, but joined to it on both sides. These indeed are those sisters of sinful Jerusalem whom the Prophet Ezekiel mentions, as Origen elegantly explains, saying among other things: <i>Where there are schisms, there are heresies, there are dissensions; for either schism does not come unaccompanied, or it does not long subsist without a worse companion.</i> And Blessed Jerome, on Paul’s Epistle to Titus, judges that this is the difference between heresy and schism, that heresy holds a perverse dogma, whereas schism, after a secession from the Bishop, separates from the Church likewise. Which indeed at the outset can in some part be understood as different; but there is no schism that does

Latin

rectè ab Ecclesia recessisse videatur. c. inter hæresim 24. quæst. 3. Orige. in Ezech. hom. 9.

3 Schisma summum malum est, severius olim ab ipso Deo punitum, quàm par-ricidium, & gravjus[4] quàm Idololatria, sicuti docet Optatus Episcopus Milevitanus, lib. 1. adversus Parmenianum. Dathan enim, & Abiron cum suis omnibus dehiscens Terra vivos absorbuit. Chore quoque cum ducentis quinquaginta viris Cælestis flamma vindex devoravit. Tantoperè Israeli indignatus est Dominus, quia se diviserunt à Domo David, & relictis Hierosolymis, ubi erat Cathedra illa Mosayca, secesserunt in Samariam, ut demolitus sit eos, dederitq; in direptionem, ac planè abjecerit à facie sua; neque enim talis erat schismatis culpa, ut veniam mereretur. *Mandata est Terræ fames, inquit Optatus, & statim fauces suas in populi divisores aperuit. Intra momenti spatium ad eos transglutiendos Terra patuit, rapuit, clausa est. Et ne beneficium de mortis compendio consequi viderentur, dum non essent digni vivere, eis neque mori concessum est; Tartareo carcere subito clausi, ante sunt sepulti, quàm mortui.* Prætereo plurima, fastidii vitandi causa, quæ Iræneus, Cyprianus, aliique multi in eandem sententiam literis commendarunt. Num. 16. Iræneus lib. 4. adversus hæreses cap. 62. Cyprian. tractat. de simplici prælat. Joan. Torquem. lib. 4. de Eccles. part. 1. cap. 5. Faber in Malleo contra Luther. tract. 6. tex. 8. Albert. Campen. in fine. lib. ulti. de Hierarch. Ecclesiast. Conra.[5] Brunus lib. 5. de hæreti. cap. 18.

4 Schismaticorum autem tria sunt genera. Primum, eorum qui consummati[6] hæ-retici sunt, alterum aliorum, qui hæreticis confines sunt; tertium Orthodoxorū, qui longè ab hæreticis distant. Primi sunt, qui non solùm à Summo Pontifice, & ab Ecclesiæ unitate discedunt, sed id etiam licere credunt, vel putantes non esse unitatem in Ecclesia Catholica, vel certè credentes non esse obediendum Summo Ecclesiæ Pastori. De his autem nihil attinet plura in præsentia dicere, quia meri hæretici sunt, & eò quidem cæteris hæreticis deteriores, quò majorem Fidei Catholicæ divisionem, & unitati Ecclesiasticæ addunt scissuram, & offensionem. Joan. Torquema. lib. 4. de Eccles. part. 1. cap. 4. Brun. lib. 1. de hæretic. cap. 16. & lib. 1. de sedit. cap. 3.

English

not fashion for itself some heresy, that it may seem to have withdrawn from the Church rightly. c. inter hæresim 24. quæst. 3. Orige. in Ezech. hom. 9.

3 Schism is the greatest evil, once punished by God himself more severely than par-ricide, and more gravely[4] than idolatry, as Optatus, Bishop of Milevis, teaches, lib. 1. against Parmenianus. For Dathan and Abiram, with all their company, the earth, gaping open, swallowed alive. Korah too, with two hundred and fifty men, an avenging heavenly flame devoured. So greatly was the Lord angered against Israel, because they divided themselves from the House of David and, leaving Jerusalem where that Mosaic Chair was, withdrew into Samaria, that he demolished them and gave them over to plundering, and utterly cast them from his face; for the guilt of such a schism was not such as to merit pardon. *Famine was commanded to the earth, says Optatus, and at once it opened its jaws upon the dividers of the people. Within the space of a moment the earth lay open to swallow them down, seized them, and was closed. And lest they should seem to obtain the benefit of a shortened death, since they were not worthy to live, neither was it granted them to die: shut up on a sudden in a Tartarean prison, they were buried before they were dead.* I pass over very many things, to avoid tedium, which Irenaeus, Cyprian and many others have committed to writing to the same effect. Num. 16. Iræneus lib. 4. adversus hæreses cap. 62. Cyprian. tractat. de simplici prælat. Joan. Torquem. lib. 4. de Eccles. part. 1. cap. 5. Faber in Malleo contra Luther. tract. 6. tex. 8. Albert. Campen. in fine. lib. ulti. de Hierarch. Ecclesiast. Conra.[5] Brunus lib. 5. de hæreti. cap. 18.

4 Now there are three kinds of schismatics. The first, of those who are consummate[6] her-etics; the second, of others who are bordering on heretics; the third, of the orthodox, who are far removed from heretics. The first are they who not only depart from the Supreme Pontiff and from the unity of the Church, but also believe that this is lawful, either thinking that there is no unity in the Catholic Church, or at any rate believing that the Supreme Pastor of the Church is not to be obeyed. Concerning these, however, it is not to the purpose to say more at present, because they are mere heretics, and indeed worse than the rest of the heretics, in proportion as they add a greater division to the Catholic faith, and a greater rending of and offence against ecclesiastical unity. Joan. Torquema. lib. 4. de Eccles. part. 1. cap. 4. Brun. lib. 1. de hæretic. cap. 16. & lib. 1. de sedit. cap. 3.

Latin

5 Alii sunt Schismatici hæreticis confines, qui nondum in aliquam aliam hæresim inciderunt, sed tantummodò ab unitate Ecclesiæ, ac Summi Pontificis obedientia discedunt, de quibus loquens D. Hieronymus inquit: *Separant deceptam multitudinem ab Ecclesia Dei, & rudes animas abrumpunt, & dividunt; tamen hoc non faciunt credulitate, qua hæreticis deceptos quosque trucidant, sed in eadem regula fidei permanentes, dilatare cupiunt terminos suos, & nomen gloriæ in posteros mittere.* Beatus quoque Augustinus contra Faustum de eodem schismate scribens ait: *Schisma est, eadem opinantem, ac eodem ritu colentem, quo cæteri, solo congregationis delectari dissidio; & libro de Fide, & Simbolo; Schismatici dissensionibus suis à fraterna charitate dissoluunt, quamvis ea credant, quæ credimus.* Quod, & Cyprianus, & alii consentiunt. c. denique 7. qu. 1. Hieronym. in episto. Amos. cap. 1.

6 Hi autem Schismatici parùm ab hæreticis distant; nam, & si Christianos se esse mentiantur, re tamen ipsa palàm ostēdunt, se credere, quòd extra Ecclesiam sit salus; quòd Summo Pontifici non est parendum; quòd scindi potest unitas Ecclesiæ; quòd extra Ecclesiam sunt vera Sacramenta; & alia præterea multa erronea, hæretica, & impia; quæ quidem omne Schisma sequuntur, ut meritò Clemens V. dixerit, *Inveteratum schisma, hæresim esse.* Extravag. ad certitudinem de sentent. excom. c. pudenda. c. schisma 24. qu. 1. Joan. Lup. de jure Navarræ par. 5. §. 7.

7 Hinc est quòd Schismatici eisdem ferè pœnis coercendi sunt, quibus hæretici puniuntur. (a) Nàm, & ipso jure sunt excommunicati, & Ecclesiastica potestate, atq; omni dignitate privantur, & omnia eorum bona publicantur. c. 2. de Schismat. c. de liguribus 23. distin. c. didicimus 24. q. 1. cap. 1. de schisma lib. 6. Joan. Bern. in pract. cap. 105.

8 Præterea, Catholici Schismaticorum communicationem diffugere debent; eosque propter Schisma justè debellare possunt, & Judices Ecclesiastici, & Seculares eos punire tenentur, tanquam hæreticos, aut certè tanquàm vehementè suspectos.

(b) Cœterum, si ad Ecclesiæ unitatem puro corde redierint, benignè admittendi sunt, Schismate priùs abjurato. c. Clericus 24.

English

5 Others are schismatics bordering on heretics, who have not yet fallen into any other heresy, but depart only from the unity of the Church and from the obedience of the Supreme Pontiff; speaking of whom St. Jerome says: *They separate the deceived multitude from the Church of God, and tear away and divide untrained souls; yet they do not do this out of that credulity by which heretics butcher those whom they have deceived, but, remaining within the same rule of faith, they desire to enlarge their own borders and to send down a name of glory to posterity.* Blessed Augustine too, writing against Faustus concerning the same schism, says: *Schism is to be delighted, while holding the same opinions and worshipping by the same rite as the rest, in the dissension of the congregation alone;* and in the book on Faith and the Creed: *Schismatics by their dissensions break away from brotherly charity, although they believe the things which we believe.* With which Cyprian also and others agree. c. denique 7. qu. 1. Hieronym. in episto. Amos. cap. 1.

6 Now these schismatics differ little from heretics; for although they falsely give themselves out to be Christians, yet by the fact itself they openly show that they believe that there is salvation outside the Church; that the Supreme Pontiff is not to be obeyed; that the unity of the Church can be rent; that outside the Church there are true Sacraments; and many other things besides, erroneous, heretical and impious, which indeed follow upon every schism, so that Clement V rightly said that *an inveterate schism is heresy.* Extravag. ad certitudinem de sentent. excom. c. pudenda. c. schisma 24. qu. 1. Joan. Lup. de jure Navarræ par. 5. §. 7.

7 Hence it is that schismatics are to be restrained by almost the same penalties by which heretics are punished. (a) For they are both excommunicated *ipso jure*, and are deprived of ecclesiastical power and of every dignity, and all their goods are confiscated. c. 2. de Schismat. c. de liguribus 23. distin. c. didicimus 24. q. 1. cap. 1. de schisma lib. 6. Joan. Bern. in pract. cap. 105.

8 Besides, Catholics ought to shun communication with schismatics; and they may justly make war upon them on account of the schism, and Judges both Ecclesiastical and Secular are bound to punish them as heretics, or at any rate as vehemently suspect.

(b) But if they return to the unity of the Church with a pure heart, they are to be kindly admitted, the schism first abjured. c. Clericus 24. q. 3. c. quoties 1.

Latin

q. 3. c. quoties 1. q. 7. Alex. Ales. 2. par. qu. 182. Joan. Torquema. lib. 4. de Eccles. par. 1. cap. 8. & 15. Joan. Lup. de jure Navarræ par. 4.

9 Alii sunt Schismatici, qui nec hæretici sunt, neque in pœnam aliquam Juris incurrunt, quia justam excusationem habent, & culpa carent. Hi sunt, qui probabili, aut insuperabili ignorantia ducti, putant aliquem esse Summum Pontificem, qui rectè electus non est; quod tunc evenire solet, cum propter ambiguum electionem, duo, aut plures de Pontificatu contendunt, & aliqui bona Fide, quendam illorum pro vero Pontifice habent, qui tamen justè electus non est; Nàm, & si credere teneamur, verum Petri successorem, Ecclesiæ Catholicæ supremum Principem esse; non tamen tenemur eadem fide credere, hunc, vel illum esse verum Petri successorem, quando magna probabilitate dubitatur, an ille sit rectè electus. Nec enim ad Fidem Catholicam pertinent ea, quæ ex dubio facto pendent; sed quæ ex certo jure nascuntur. Vide Gersonem, tract. de modo habendi se tempore schismatis, & iterum sermo. de Angel. p. 2. Joan. Torquemada lib. 4. de Ecclesi. par. 1. cap. 14. Franc. Picum lib. de fide, theoremate 17. Alvarum Pelagium lib. 1. de planctu Ecclesiæ articu. 65. Alfons. lib. 1. adversus hæreses cap. 9. Jacobatium lib. 7. de concilio art. 1.

10 Extat in Codice Theodosiano sub titulo de his, qui super religione contendunt, lex Theodosii, & Valenti[7] his ipsis verbis: *Manichæos, hæreticos, schismaticos, Mathematicos, omnemque sectam Catholicis inimicam, ab ipso aspectu urbis Romæ exterminari præcipimus, ut ne præsentia criminorum contagione fædentur. Circa hos autem maximè exercenda commonitio est, qui pravis suasionibus à venerabilis Papæ se se communione suspendunt, quorum Schismate plebs etiam reliqua vitiatur. His, conventionem præmissa viginti dierum, cōdonavimus inducias, intra quos, nisi ad communionis redierint unitatem, expulsi usq; ad centesimum lapidem, solitudine, quam eligunt, macerentur.* l. 53.

11 Christus Deus noster apud Joannē cap. 17. enixè Patrem pro nobis rogat, ut unum simus: *Pater sancte, serva eos*, inquit, *in nomine tuo, ut sint unum, sicut, & nos.* Et paulo post: *Et ego Claritatem, quam tu dedisti mihi, dedi eis, ut sint unum, sicut &*

English

q. 7. Alex. Ales. 2. par. qu. 182. Joan. Torquema. lib. 4. de Eccles. par. 1. cap. 8. & 15. Joan. Lup. de jure Navarræ par. 4.

9 There are others who are schismatics, who are neither heretics nor incur any penalty of law, because they have a just excuse and are without fault. These are they who, led by probable or invincible ignorance, think someone to be Supreme Pontiff who has not been rightly elected; which is wont to happen when, on account of an ambiguous election, two or more contend for the Pontificate, and some in good faith hold one of them for the true Pontiff, who nevertheless has not been justly elected. For although we are bound to believe that the true successor of Peter is the supreme Prince of the Catholic Church, we are nevertheless not bound by the same faith to believe that this or that man is the true successor of Peter, when it is doubted with great probability whether he was rightly elected. For those things do not pertain to the Catholic faith which depend on a doubtful fact, but those which arise from certain right. See Gersonem, tract. de modo habendi se tempore schismatis, & iterum sermo. de Angel. p. 2. Joan. Torquemada lib. 4. de Ecclesi. par. 1. cap. 14. Franc. Picum lib. de fide, theoremate 17. Alvarum Pelagium lib. 1. de planctu Ecclesiæ articu. 65. Alfons. lib. 1. adversus hæreses cap. 9. Jacobatium lib. 7. de concilio art. 1.

10 There stands in the Theodosian Code, under the title concerning those who contend about religion, a law of Theodosius and Valentinian[7] in these very words: *We command that Manichees, heretics, schismatics, astrologers, and every sect hostile to Catholics be banished from the very sight of the city of Rome, lest men be defiled by the contagion of the presence of criminals. But admonition is to be exercised chiefly upon those who by depraved persuasions withhold themselves from the communion of the venerable Pope, by whose schism the remaining people also is corrupted. To these, a summons having first been issued, we have granted a respite of twenty days, within which, unless they return to the unity of communion, let them be expelled to the hundredth milestone and be worn down by that solitude which they choose.* l. 53.

11 Christ our God, in John chapter 17, earnestly entreats the Father on our behalf that we may be one: *Holy Father, keep them*, he says, *in thy name, that they may be one, as we also are.* And a little after: *And the glory which thou hast given me, I have given to them, that they may be one, as we also*

Latin

nos unum sumus. Et Paulus Apostolus prioris epist. ad Corint. cap. 1. Obsecro autem vos fratres per nomen Domini nostri Iesu Christi, ut id ipsum dicatis omnes, & non sint in vobis schismata; sitis autem perfecti in eodem sensu, & in eadem sententia; & ad Ephesi. cap. 4. Obsecro vos, ut dignè ambuletis vocatione, qua vocati estis cum omni humilitate, & mansuetudine solliciti servare unitatem spiritus in vinculo pacis.

12 Novelli autem hæretici hisce temporibus, neque unum sunt, neque Dei claritatem habent, neque permanent in eodem sensu, & eadem sententia, nec servant unitatem spiritus in vinculo pacis, nec idipsum dicunt omnes; sed sunt inter eos schismata, itaut vel in una domo varias fides invenias, dum aliud maritus, aliud uxor, aliud liberi, aliud credit familia. Fredericus quidē Staphilus triginta quatuor sectas discipulorum Lutheri enumerat, & plures quoque retulit Osius lib. 1. adversus Prologomena[8] Brentii, & Lindanus indubitant. Neque dubitari potest, quin propè diem innumerabiles alias inventuri, & excitaturi sint; tam varii, diversi, & multiformes sunt. Quo vel solo patet, eos omnes in magna Religionis confusione versari, & spiritu caliginis agitari.

13 Tales sunt omnes hæretici, ut inquit Iræneus lib. 5. & *qui, se plus aliquid præter veritatem, invenire putant, variè, & multiformitèr imbecille facientes iter, de eisdem non semper easdem sententias habentes, veluti Cæci à cæcis circumducuntur.* Et Tertul. lib. de præscrip. *Unde autem extranei, & inimici Apostolis hæretici, nisi ex diversitate doctrinæ, quam unusquisque de suo arbitrio adversus Apostolos, aut protulit, aut respicit?* Et Athanasius in decretis Synodi Ephesinæ: *Homines duplici animo, & instabiles in omnibus viis suis, nec eandem habentes sententiam; sed nunc in hanc, nunc in illam se se vertentes, & nunc quidem probantes quod dicunt, mox verò vituperantes quod paulò ante laudaverunt.* Et Hilarius lib. 7. de Trini. ait, *hæreticorum esse incerta omnia, & vana, invicem dissidere, non eadem de eisdem dicere, semetipsos arguere, de eisdem verbis non consentientes, differentia dicere, in idem tamen blasphemiam concurrere propositum.* Et Epiphanius lib. 3. *quando aliquos ex illis interrogaveris, omnes sanè diversum respondent.* Et Augustinus in Epistolam Joan. tract. 7. *Tollis te ab unitate Orbis,*

English

are one. And Paul the Apostle, in the first epistle to the Corinthians chapter 1: Now I beseech you, brethren, by the name of our Lord Jesus Christ, that you all speak the same thing, and that there be no schisms among you; but that you be perfect in the same mind, and in the same judgment; and to the Ephesians chapter 4: I beseech you that you walk worthy of the vocation in which you are called, with all humility and mildness, careful to keep the unity of the Spirit in the bond of peace.

12 But the new heretics of these times are not one, nor do they have the glory of God, nor do they remain in the same mind and the same judgment, nor do they keep the unity of the Spirit in the bond of peace, nor do they all say the same thing; but there are schisms among them, so that even in one house you may find various faiths, while the husband believes one thing, the wife another, the children another, the household another. Frederick Staphylus indeed enumerates thirty-four sects of Luther's disciples, and Hosius also reported more, lib. 1. adversus Prologomena[8] Brentii, and Lindanus indubitant. Nor can it be doubted that in a short time they will find out and stir up innumerable others; so various, diverse and multiform are they. From this alone it is plain that they are all caught up in a great confusion of religion, and are driven by a spirit of darkness.

13 Such are all heretics, as Irenæus says, lib. 5.: *and those who think that they discover something more beyond the truth, making their way variously and in manifold fashion and feebly, not always holding the same opinions about the same matters, are led about like blind men by the blind.* And Tertullian, lib. de præscrip.: *But whence come heretics to be strangers and enemies to the Apostles, if not from a diversity of doctrine, which each one, at his own discretion, has either brought forth or has regard to against the Apostles?* And Athanasius, in the decrees of the Synod of Ephesus: *Men double-minded and unstable in all their ways, and not holding the same judgment, but turning themselves now to this side, now to that, and now indeed approving what they say, but presently blaming what a little before they praised.* And Hilary, lib. 7. de Trini., says that *all things of heretics are uncertain and vain; that they disagree with one another, do not say the same things about the same matters, refute themselves, and, not agreeing about the same words, say differing things, yet run together into the same purpose of blasphemy.* And Epiphanius, lib. 3.: *when you have questioned some of them, they all assuredly answer differently.* And Augustine, in Epistolam Joan. tract. 7.: *Thou takest thyself away from the unity of the world, thou dividest*

Latin

dividis Ecclesiam per schismata, corpus Christi dilanias, & cœtera in eandem sententiam.

14 In hos igitur fanaticos impios, qui divina omnia contaminare conantur, insurgant leges igne ultore. Pellantur Hispania[9] pestiferi hæretici, qui omnem disciplinam veterem, quam Spiritus Sanctus docuit, quam tot Majorum ætates, tantus Gentium consensus, tot præclari, & omni sanctitatis, atque doctrinæ laude florentes homines tradiderunt, ex vera illa Christianæ Reipublicę gubernandę ratione, in perturbationem rerum omnium, & plusquam Babylonicam confusionem coniiciunt.

BLOCK D — Castracani, Annotationes on tit. LVIII (printed 397–398)

ANNOTATIONES.

1 *Schisma Græcum nomen est.*

Nota quòd licet Schisma scissuram sonet, non ob id tamen credendum est quòd ipsa Ecclesia scindatur; scinduntur igitur quotquot ab ejus vnitate separantur; at ipsa in sua unitate immobilis perseverat. Decian. tract. criminal. lib. 5. cap. 60. nu. 4. De hac Schismaticorum materia vide D. Thom. 2. 2. quæst. 39. D. Bonauentur. 4. sentent. dist. 13. D. Antonin. part. 2. tit. 3. cap. 11. Turrecrem. in summa de Eccles. lib. 4. p. 1. cap. 1. usque ad 15. Azor. Instit. moral. part. 1. lib. 8. cap. 20. Alfons. Castr. adversus hæres. lib. 1. cap. 9. & alios quam plures, quos citatos leges apud Farinac. de hæresi quæst. 184. §. 1. num. 1.

3 *Schisma summum malum est &c.*

Nota quòd hæc doctrina de Schismatis gravitate, intelligenda non est de Schismate secundum sui speciem, quasi peccatum Schismatis intrinsecè majorem includat malitiam, quàm Idololatria, Infidelitas, & hæresis ipsa. Sed est interpretanda juxtà circumstantias; quàmvis enim major malitia sit in Infidelitate, & Idololatria, quæ opponuntur Deo, quàm in Schismate, quod opponitur Ecclesiæ unitati; attamen ex circumstantiis peccare gravjus[4] aliquando poterit Schismaticus, quàm Idololatra, seù Infidelis, puta vel propter majorem contemptum, vel propter majus periculum &c. Marian. Soccin. Rub. de Schismatic. nu. 10.

English

the Church by schisms, thou tearest in pieces the body of Christ, and the rest to the same effect.

14 Against these impious fanatics, therefore, who strive to defile all divine things, let the laws rise up with avenging fire. Let there be driven from Spain[9] those pestilent heretics who cast all the ancient discipline which the Holy Spirit taught, which so many ages of our forebears, so great a consent of nations, so many illustrious men flourishing with every praise of holiness and of learning have handed down, out of that true method of governing the Christian Commonwealth into a disturbance of all things and a more than Babylonian confusion.

BLOCK D — Castracani, Annotationes on tit. LVIII (printed 397–398)

ANNOTATIONS.

1 *Schism is a Greek name.*

Note that, although schism sounds “a rending,” it is not on that account to be believed that the Church herself is rent; those therefore are rent, as many as are separated from her unity, but she herself abides unmoved in her unity. Decian. tract. criminal. lib. 5. cap. 60. nu. 4. On this matter of schismatics see D. Thom. 2. 2. quæst. 39. D. Bonauentur. 4. sentent. dist. 13. D. Antonin. part. 2. tit. 3. cap. 11. Turrecrem. in summa de Eccles. lib. 4. p. 1. cap. 1. usque ad 15. Azor. Instit. moral. part. 1. lib. 8. cap. 20. Alfons. Castr. adversus hæres. lib. 1. cap. 9. and very many others, whom you may read cited in Farinac. de hæresi quæst. 184. §. 1. num. 1.

3 *Schism is the greatest evil, etc.*

Note that this doctrine concerning the gravity of schism is not to be understood of schism according to its own species, as though the sin of schism intrinsically included a greater malice than idolatry, infidelity and heresy itself. But it is to be interpreted according to the circumstances; for although there is a greater malice in infidelity and idolatry, which are opposed to God, than in schism, which is opposed to the unity of the Church, nevertheless from the circumstances a schismatic will sometimes be able to sin more gravely[4] than an idolater or an infidel, for instance either on account of a greater contempt, or on account of a greater danger, etc. Marian. Soccin. Rub. de Schismatic. nu. 10. & sequen. On the atrocity of schism see,

Latin

& sequen. De Schismatis atrocitate vide inter alios Petr. Gregor. sintagm. Iuris lib. 33. cap. 11. nu. 1. Lopez. in addit. ad Diaz. pract. Criminal. Canon. verbo Schismatici cap. 112. vers. & nota.

4 Schismaticorum autem tria sunt genera &c.

Quot modis in Iure capiantur Schismatici, vide expressum doctissimè apud Farinac. loco qui supra num. 3.

5 Alii sunt Schismatici &c.

Nota quòd Schisma non semper intellectus errorem involuit, ut patet in iis, qui Papæ potestatem credunt, sed aliqua moti passione se ab ejus obedientia subtrahunt. Vide Tolet. lib. 4. de Instruct. Sacerd. cap. 11. num. 2.

7 (a) Nàm, & ipso jure sunt excommunicati &c.

Intellige quoties eorum Schisma conjunctam hæresim habet; si enim Schisma est sine hæresi; secùs dicendum est. Farinac. loco supercit. Rub. de Pœna schismat. num. 59.

8 (b) Cæterùm ad Ecclesiæ unitatē &c.

Nota quòd Schismaticus penitens ad Ecclesiæ unitatem, abjurazione præmissa, receptus, remanet postmodum irregularis, nec ad Ecclesiasticas dignitates promoveri potest, nisi dispensetur à Papa cum eo. Pegna in addit. ad Eymeric. 2. part. direct. comment. 73. quæst. 48. vers. cognitu dignum. Cravettæ reprobata sententia.

9 Alii sunt &c.

Disputatur inter Theologos, an certitudine Fidei, cui nunquam falsum subesse potest, certum sit hunc numero Pontificem Maximum esse verum Pontificem. Verior sententia est, quæ de Summo Pontifice, post quàm ab Ecclesia Vniversali receptus est, loquens, affirmat, quam comprobare hic videtur Simanc, dum asserens nos eadem fide, qua credimus verum Petri successorem Ecclesiæ Catholicæ Supremum Principem esse, credere non teneri hunc, vel illum esse verum Petri successorem, subiicit: *Quando magna probabilitate dubitatur, an ille sit rectè electus.* postquàm enim Summus Pontifex unanimi Ecclesiæ cōsensu receptus est,

English

among others, Petr. Gregor. sintagm. Iuris lib. 33. cap. 11. nu. 1. Lopez. in addit. ad Diaz. pract. Criminal. Canon. verbo Schismatici cap. 112. vers. & nota.

4 Now there are three kinds of schismatics, etc.

In how many ways schismatics are taken in law, see it most learnedly set forth in Farinac. loco qui supra num. 3.

5 Others are schismatics, etc.

Note that schism does not always involve an error of the intellect, as is clear in the case of those who believe in the power of the Pope, but, moved by some passion, withdraw themselves from his obedience. See Tolet. lib. 4. de Instruct. Sacerd. cap. 11. num. 2.

7 (a) For they are both excommunicated ipso jure, etc.

Understand this whenever their schism has heresy joined to it; for if the schism is without heresy, it must be said otherwise. Farinac. loco supercit. Rub. de Pœna schismat. num. 59.

8 (b) But to the unity of the Church, etc.

Note that a penitent schismatic, received into the unity of the Church upon a prior abjuration, nevertheless remains irregular afterwards, and cannot be promoted to ecclesiastical dignities unless the Pope dispense with him. Pegna in addit. ad Eymeric. 2. part. direct. comment. 73. quæst. 48. vers. cognitu dignum. The opinion of Cravetta is rejected.

9 There are others, etc.

It is disputed among theologians whether it is certain, with the certitude of faith beneath which falsehood can never lie, that this individual Supreme Pontiff is the true Pontiff. The truer opinion is that which, speaking of the Supreme Pontiff after he has been received by the universal Church, affirms it, which Simancas seems here to confirm, when, asserting that we are not bound to believe, by that same faith by which we believe that the true successor of Peter is the Supreme Prince of the Catholic Church, that this or that man is the true successor of Peter, he adds: *When it is doubted with great probability whether he was rightly elected.* For after the Supreme Pontiff has been received by the unanimous consent of the Church, all doubt about his

<i>Latin</i>	<i>English</i>
omnis dubietas de recta eiusdem electione tollitur. Vide Castropal. tract. 4. de Fide disput. 1. punct. 5. §. 2. num. 9.	right election is removed. See Castropal. tract. 4. de Fide disput. 1. punct. 5. §. 2. num. 9.
BLOCK E — Theorice et Praxis, tit. V De Schismaticis (printed 461–462)	BLOCK E — Theorice et Praxis, tit. V De Schismaticis (printed 461–462)
De Schismaticis. Titulus V.	On Schismatics. Title V.
SUMMARIUM.	SUMMARY.
1 Schisma nomen Græcum, latinè scissuram denotat.	1 SCHISM, a Greek name, in Latin denotes a rending.
2 Schismatici in triplici sunt differentia.	2 Schismatics are of a threefold difference.
3 Pontifex summus Christi Vicarius est.	3 The Supreme Pontiff is the Vicar of Christ.
4 Schismatici qua facti specie puniendi sunt, licèt nullam hæresim teneant.	4 Under what species of fact schismatics are to be punished, although they hold no heresy.
5 Schismatici pertinaces ipso jure excommunicati sunt.	5 Obstinate schismatics are excommunicated ipso jure.
6 Schismatici ad Ecclesiæ unitatem ex corde redeuntes, sunt excipiendi.	6 Schismatics returning with their whole heart to the unity of the Church are to be received.
De Schismaticis.	On Schismatics.
1 Schisma quoq; nomen Græcum, latinè scissuram significat; & non qualemcumq; sed illicitam discessionem ab Ecclesiæ unitate; vulgò autem schismatici dicuntur, qui ab obedientia summi Pontificis se ipsos separant, atque adeò ab unitate Ecclesiæ discedunt. c. schisma. 24. quæst. 1.	1 SCHISM likewise is a Greek name; in Latin it signifies a rending, and not one of any sort whatever, but an unlawful departure from the unity of the Church. Commonly, moreover, those are called schismatics who separate themselves from the obedience of the Supreme Pontiff, and thereby depart from the unity of the Church. c. schisma. 24. quæst. 1.
2 Schismatici autem in triplici sunt differentia: quidam sunt hæretici consummati[6], qui non solùm discedunt à Summo Pontifice, verùm etiam id licere credunt, & qui alias sibi hæreses confingunt.	2 Now schismatics are of a threefold difference: some are consummate[6] heretics, who not only depart from the Supreme Pontiff, but also believe that this is lawful, and who fashion other heresies for themselves.
Alii sunt hæreticis affines, qui nullam hæresim tenent: de quibus Divus Augustinus contra Grammaticum scribit: <i>Schismaticos esse eadem opinantes, ac eodem ritu colentes, quo cæteri; sed solo congregationis hi delectantur dissidio, seque separant.</i> c. denique 7. quæst. 1.	Others are akin to heretics, who hold no heresy: concerning whom the divine Augustine writes against the Grammarian, <i>that schismatics are those holding the same opinions and worshipping by the same rite as the rest; but these are delighted in the dissension of the congregation alone, and separate themselves.</i> c. denique 7. quæst. 1.
Sunt & alii, qui justa ignorantia ducti putant aliquē esse Pontificem summum, qui rectè non est electus: quod tunc evenire	

Latin

solet, cùm duo, vel plures de Pontificatu contendunt, & electio ambigua est.

3 Nàm, & si credere teneamur summum Pontificem esse Christi Vicarium; non tamen tenemur eadem fide credere, hunc, vel illum esse Papam, quando magna probabilitate dubitatur quis eorum rectius electus est; nec enim ad Fidem Catholicam pertinent ea, quæ ex facto dubio pendent: itaq; hi omni culpa carere possunt, neq; verè schismatici sunt.

4 Illi autem schismatici, qui nullam hæresim tenent, nihilominus tanquam hæretici puniendi sunt; quia hoc solo, quòd à capite discedunt, videntur credere, quòd unitas Ecclesiæ scindi potest, & quòd Sūmo Pontifici non est parendum, & alia id genus hæretica, & impia; ut rectè dixerit Clemens V. inveteratum schisma hæresim esse. *Extravag. ad certitudinem, de sentent. excommunicatio. c. pudenda. c. schisma 24. quæstio. 1.*

5 Hinc est, quòd schismatici pertinaces ipso jure sunt excommunicati; & omni dignitate, ac potestate privandi sunt, bonis etiam publicatis. *c. 2. de Schism. c. de Liguribus 23. quæst. 5. c. in nomine 23. distinct. c. didicimus 24. quæst. 1. c. 1. de schisma. lib. 6.*

6 Quòd si ad Ecclesiæ unitatem puro corde redierint, benignè excipiendi sunt, schismate priùs abjurato. *c. clericus 24. qu. 3. c. quoties 1. q. 7.*

ANNOTATIONES.

Vide quæ de Catholicis Institutionibus tit. 58. docuit Auctor, & quæ ibidem notavi nu. 1. & seq.

English

And there are still others who, led by a just ignorance, think someone to be Supreme Pontiff who has not been rightly elected: which is wont to happen when two or more contend for the Pontificate, and the election is ambiguous.

3 For although we are bound to believe that the Supreme Pontiff is the Vicar of Christ, we are nevertheless not bound by the same faith to believe that this or that man is Pope, when it is doubted with great probability which of them was the more rightly elected; for those things do not pertain to the Catholic faith which depend on a doubtful fact. And so these men can be free of all fault, and are not truly schismatics.

4 But those schismatics who hold no heresy are nonetheless to be punished as heretics; because by this alone, that they depart from the head, they seem to believe that the unity of the Church can be rent, and that the Supreme Pontiff is not to be obeyed, and other things of that kind, heretical and impious; so that Clement V rightly said that an inveterate schism is heresy. *Extravag. ad certitudinem, de sentent. excommunicatio. c. pudenda. c. schisma 24. quæstio. 1.*

5 Hence it is that obstinate schismatics are excommunicated *ipso jure*; and they are to be deprived of every dignity and power, their goods also being confiscated. *c. 2. de Schism. c. de Liguribus 23. quæst. 5. c. in nomine 23. distinct. c. didicimus 24. quæst. 1. c. 1. de schisma. lib. 6.*

6 But if they return to the unity of the Church with a pure heart, they are to be kindly received, the schism first abjured. *c. clericus 24. qu. 3. c. quoties 1. q. 7.*

ANNOTATIONS.

See what the Author taught in the Catholic Institutions, tit. 58, and what I noted in the same place at nu. 1 and following.